

**PLACER COUNTY SUPERIOR COURT
TAHOE DIVISION, DEPARTMENT 14
CIVIL LAW AND MOTION TENTATIVE RULINGS
FRIDAY, SEPTEMBER 18, 2026**

These are the tentative rulings for civil law and motion matters set at **1:00 p.m. on Friday, September 18, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Thursday, September 17, 2026**. Notice of request for oral argument to the court must be made by calling (530) 584-3463. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE EUGENE S. GINI** and if oral argument is requested, it will be heard at 1:00 p.m. in **Department 14**, located at the Tahoe City Courthouse, 2501 No. Lake Boulevard, Tahoe City, California 96145.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. T-CV-0002531 Ann Nguyen v. Victoria Berchtold

Respondent is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Reconsideration

Respondent moves for reconsideration of the court's order renewing the civil harassment restraining order pursuant to Code of Civil Procedure section 1008(a). No opposition has been filed.

Preliminarily, all moving papers shall be filed and served providing for at least 16 court days' notice. (Code Civ. Proc., § 1005, subd. (b).) Here, respondent's moving papers were timely filed and served; however, respondent then filed and served a supplemental declaration in support of the motion for reconsideration and then an amended supplemental declaration in support of the motion for reconsideration. As these documents are supported by insufficient notice required in Code of Civil Procedure section 1005(b), the court will not consider them for this motion and instead limits its review to the moving papers filed on August 12, 2026.

A motion for reconsideration requires a showing of new or different facts, circumstances, or law along with a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212–13.) Here, respondent argues the court had incorrect, insufficient, and incomplete evidence before it at the August 5, 2026 hearing. Respondent submits her declaration and declaration addendum and Exhibits A through G thereto and urges the court to reconsider its conclusions. Respondent offers no explanation as to why this information was not submitted at the August 5, 2026 hearing, nor does respondent argue this information could not have reasonably been discovered or produced earlier. Moreover, some of this information was submitted to the court at the August 5, 2026 hearing, as petitioner was cross-examined about alleged conflicting statements, so the court had already considered this information as to her credibility.

The court has carefully considered all moving papers and evidence submitted therewith and finds respondent falls short of her burden justifying Code of Civil Procedure section 1008(a) relief. Not only does respondent fall short of her burden for this motion for reconsideration, the court carefully considered the evidence presented at the time of trial to reach its ruling and no new evidence has been submitted that would cause the court to disturb its ruling. The court's prior orders remain. The motion is, accordingly, denied.

2. T-CV-0002857 James Taylor Macdonell v. James Kevin Long

Respondent is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorneys' Fees

Respondent moves for an award of attorneys' fees and costs against petitioner totaling \$13,724.25 pursuant to Code of Civil Procedure section 527.6(s). Petitioner opposes the motion.

The prevailing party in a CHRO proceeding may be awarded court costs and attorney's fees. (Code Civ. Proc., § 527.6, subd. (s).) As Code of Civil Procedure section 527.6 does not define prevailing party, the definition in Code of Civil Procedure section 1032(a)(4) applies: "'Prevailing party' includes . . . a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc., § 1032, subd. (a)(4); see also *Adler v. Vaicius* (1993) 21 Cal.App.4th 1770 [applying Section 1032(a)(4)'s definition to CHRO proceedings].) Here, respondent is the prevailing party and the court may award respondent attorneys' fees and costs if it determines in its discretion to do so.

Here, considering the moving papers and evidence submitted therewith, the evidence presented at trial, and the entire court file, the court declines to exercise its discretion to award attorneys' fees and costs to respondent.

While the court need not and does not reach the merits of this motion, the court observes respondent's evidence is insufficient to support a finding of reasonableness as to the number of hours incurred, the hourly rate of counsel, or the costs incurred as respondent provides no evidence of the training and experience of counsel, did not provide billing invoices or sufficiently detailed information to permit the court to assess whether the number of hours worked on each task was reasonable, and did not provide any specific itemization of costs. The motion could not be granted on this evidence.

Based on the foregoing, the motion for attorneys' fees and costs is denied and each side shall bear their own costs.

3. T-CV-0002858 James Taylor Macdonell v. Manuel Ochoa

Respondent is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorneys' Fees

Respondent moves for an award of attorneys' fees and costs against petitioner totaling \$13,724.25 pursuant to Code of Civil Procedure section 527.6(s). Petitioner opposes the motion.

The prevailing party in a CHRO proceeding may be awarded court costs and attorney's fees. (Code Civ. Proc., § 527.6, subd. (s).) As Code of Civil Procedure section 527.6 does not define prevailing party, the definition in Code of Civil Procedure section 1032(a)(4) applies: "'Prevailing party' includes . . . a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc., § 1032, subd. (a)(4); see also *Adler v. Vaicius* (1993) 21 Cal.App.4th 1770 [applying Section 1032(a)(4)'s definition to CHRO proceedings].) Here, respondent is the prevailing party and the court may award respondent attorneys' fees and costs if it determines in its discretion to do so.

Here, considering the moving papers and evidence submitted therewith, the evidence presented at trial, and the entire court file, the court declines to exercise its discretion to award attorneys' fees and costs to respondent.

While the court need not and does not reach the merits of this motion, the court observes respondent's evidence is insufficient to support a finding of reasonableness as to the number of hours incurred, the hourly rate of counsel, or the costs incurred as respondent provides no evidence of the training and experience of counsel, did not provide billing invoices or sufficiently detailed information to permit the court to assess whether the

number of hours worked on each task was reasonable, and did not provide any specific itemization of costs. The motion could not be granted on this evidence.

Based on the foregoing, the motion for attorneys' fees and costs is denied and each side shall bear their own costs.
